

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-zk8-6ef0
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-6357
Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

See attached file(s)

Attachments

White House AI Action Plan Comment Letter (March 14 2025)

March 14, 2025

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an American who works in the entertainment industry. Like many of my colleagues, I have spent years developing the skills and knowledge to contribute toward the creation of various entertainment media that have been consumed by many people both within and outside of the US.

However, the generative artificial intelligence (also referred to as genAI) systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy many American jobs, livelihoods, and products with their demand to create special carve outs in copyright law.

Generative AI systems can only be produced by first training them on work that was made by human beings. My unique works, and the work of countless other American creators was taken and fed into these AI systems without our consent or any compensation. These systems ingest our work, imitate it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking the current administration to create exceptions and loopholes to turn this practice of stealing American creators' work into legal precedent. They are claiming that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

If the goal is truly to protect American innovation, it will be achieved by protecting American creators. **Do not create new copyright exemptions that allow Big Tech companies to**

exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI, but we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law in those companies' favor.

Thank you for the opportunity to comment on these important issues.